

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA**

PRC Appeal No. 29/2025

M/S Fiza Group of Construction Company,
Through its Proprietor, Mr. Abdul Ali

... Appellant

Versus

1. Government of Balochistan through its Secretary, Public Health Engineering Department, Civil Secretariat, Zarghoon Road, Quetta.
2. Chairman, CRC Committee.
3. Executive Engineer, Public Health Engineering Division, District Sherani at Zhob.
4. M/S AHS Brothers.

... Respondents

Quorum

1. Mr. Habib-ur-Rehman Jamot..... Chairman, PRC
2. Mr. Mubashir Ali Khan (FCIPS).....Member, PRC
3. Engr. Junaid Shah.....Member, PRC
4. Mr. Muhammad Ayub Nasir (Retd. Chief Engineer).....Technical Member, PRC
5. Mr. Syed Muheebullah, Advocate.....Private Member, PRC

Decision Dated- 17th November 2025

BRIEF FACTS

1. The Executive Engineer PHI Division Sherani, District Sherani Invites Bid against TSE No. 252608812933, Procurement Titled as "Solar Water Supply Schemes in District Sherani" with estimated approved budget of PKR. 19,183,000. The procurement process was advertised in leading newspapers, adopting the Single Stage Two Envelope bidding procedure under the Least Cost Selection Evaluation Criteria.
2. The Appellant, M/S Fiza Group of Construction Company, participated in the said tender after completing registration on the Electronic Procurement System of BPPRA, Government of Balochistan. However, the Appellant was declared technically disqualified on the grounds that he did not fulfill the eligibility criterion relating to "similar work in hand."
3. Aggrieved by this decision, the Appellant submitted a grievance before the Chairman, Complaint Redressal Committee (CRC) on 06.10.2025. The CRC, however, failed to decide the grievance within the prescribed statutory period stipulated under the BPPR Rules, 2014.
4. Consequently, the Appellant preferred the present appeal before this Committee, asserting that he duly met all evaluation and eligibility criteria, and that his valid work completion certificates were ignored by the Procuring Agency without justification.

PRAYER OF THE APPELLANT

The Appellant prays that the decision of disqualification be set aside and that the Procuring Agency be directed to re-evaluate his bid in accordance with the applicable procurement rules, without imposing arbitrary or discriminatory conditions such as "work in hand."

FINDINGS AND DECISION OF THE COMMITTEE

1. Upon admission of the appeal, this Committee issued notices to all Respondents, directing them to appear and submit written replies along with the relevant record pertaining to the impugned tender.

2. The Respondent No. 3, Executive Engineer, PHE Division Sherani, submitted his reply contesting the appeal on both factual and legal grounds. He contended that the Appellant had neither submitted a grievance application to the CRC nor attached valid documentary proof in support of his claim. He further alleged that certain documents submitted by the Appellant were found to be fake and fabricated upon verification.

3. The primary issue arising from the pleadings was whether the Appellant possessed any ongoing "work in hand" and whether such a condition formed part of the lawful eligibility criteria under the procurement rules.

4. Upon careful perusal of the record, this Committee observed that the insertion of the "work in hand" condition is inconsistent with the spirit and intent of the procurement laws. The Authority has previously issued guidelines advising all Procuring Agencies to refrain from including such restrictive conditions, as they contravene the principle of fair competition enshrined in the BPP Rules, 2014. However, the Procuring Agency failed to adhere to these instructions.

5. The stance of the Official Respondents for demanding "work in hand" factor in the evaluation criteria and not in the basic eligibility criteria, is of no significance. The Committee holds that both terms are interlinked and in essence, constitute one and the same condition, as the bidder is instantly knocked-out in the very initial stage of evaluation on yes/No basis. Hence, the Respondents' objection is overruled.

6. Furthermore, on scrutiny of the bidding documents, the Committee noted that the Procuring Agency had repeated the condition of "85% completion of construction work" four times. When questioned, the Respondents attributed this to a "system error," which this Committee finds unacceptable. Procuring Agencies are duty-bound to ensure clarity, precision, and fairness in tender documentation, as bidders are not expected to navigate technical ambiguities created by administrative negligence.

7. The Committee takes serious note of an aggravating factor in this case, which is the Procuring Agency's blatant disregard for regulatory oversight. The fact, that the Balochistan Public Procurement Regulatory Authority (BPPRA) issued two letters to the Procuring Agency, explicitly identifying the same non-compliances in this procurement process. The Agency's failure to act upon, or even meaningfully respond to, these directives reveals a pattern of conduct that is not merely erroneous but willfully negligent, further vitiating the entire procurement process.

8. For the reasons stated herein, the Committee finds that the procurement process was fundamentally flawed, conducted in blatant violation of the BPP Rules, including insertion of difficult condition, evaluation of bids and disregard for BPPRA directives have irreparably tainted the procurement process. The irregularities are so profound that they render the entire process void and incapable of remedy. Consequently, in exercise of its powers, the Committee hereby declares this procurement an mis-procurement and annuls it in its entirety.

9. In case, the Procuring Agency has made any payment to Respondent No. 4 against the impugned contract, this Committee clarifies, that any such payment made during the pendency of a complaint in violation of the Public Procurement Legal Framework was made at the Procuring Agency's own risk and without legal cover.

10. The Procuring Agency shall, in consultation with the relevant administrative department and legal counsel, determine the legal and financial implications of reversing the award of Contract, and shall report compliance to this Committee within fifteen (15) days of this Order.

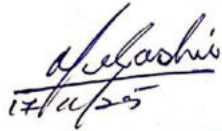
11. The Appeal is accordingly disposed of in the above terms. The Registrar of this office is directed to transmit a copy of this decision to the Appellant and all official Respondents for compliance and record.

Issued under the signatures and seal of the Committee.



Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

17/11/25

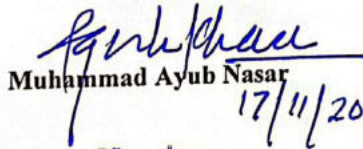


Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah
Member
Procurement Review Committee
BPPRA



Muhammad Ayub Nasar

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